

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Sophia Retchless indicates compliance with this requirement.

Merits. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The Cross-Complaint alleges two causes of action; one for quiet title; and the other for declaratory relief. The Cross-Complaint contains very few specific factual allegations but appears to base the quiet title cause of action on the existence of a prescriptive or implied easement. The party claiming a prescriptive easement must prove use of the property which was open, notorious, continuous, and adverse for an uninterrupted period of five years. *Warsaw v. Chicago Metallic Ceilings, Inc.* (1984) 35 Cal.3d 564, 570. The Cross-Complaint contains conclusory allegations that the use was open, notorious, continuous, and adverse for a period of five years but provides no specific facts. The Court cannot consider conclusory statements. *Hood, supra* 65 Cal.App.4th at 438. The Court finds that the Cross-Complaint fails to allege sufficient facts to support a claim of a prescriptive easement.

As for the purported implied easement, the Cross-Complaint suffers from the same defects. It provides only conclusory statements but no specific facts. The Court cannot determine if the Cross-Complainant is requesting an implied easement by reservation or an implied conveyance. The Court finds that the Cross-Complaint fails to allege sufficient facts to support a claim of an implied easement by reservation or by implied conveyance.

As for the declaratory relief cause of action, the Court finds it also fails to state sufficient facts. A declaratory relief cause of action requires an “actual controversy relating to the legal rights and duties between the respective parties....” CCP § 1060. Here, the declaratory relief is based on a claim or interest in the real property at issue. For the reasons noted above, Cross-Defendant has failed to allege sufficient facts to support a quiet title claim for an easement. Without a valid claim, there is no actual controversy.

The demurrer is **SUSTAINED** with leave to amend. Cross-Complaint is granted leave to file an Amended Cross-Complaint within 10 days of service of the notice of entry of order. A proposed order was lodged with the Court which will be modified to conform to the Court’s final ruling.

WELLS FARGO BANK, N.A. VS. ZUMSTEG

CASE NUMBER: 25CVG-01553

Tentative Ruling on Motion for Judgment on the Pleadings: Plaintiff Wells Fargo Bank, N.A. moves for judgment on the pleadings pursuant to CCP § 438. Despite being properly noticed, Defendant Lucas J Zumsteg did not file an Opposition.

Meet and Confer. Before filing a motion for judgment on the pleadings, the moving party shall meet and confer in person, by telephone, or video conference with the opposing party. CCP § 439(a). Plaintiff has provided evidence that a letter was sent to Defendant informing Defendant Plaintiff’s intention to move for judgment on the pleadings. While the meet and confer efforts were not in person, by telephone, or video conference as required, a determination by the Court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for judgment on the pleadings. CCP § 439(a)(4).

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Complaint and Answer filed in this matter. The request is granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. CCP § 438(c)(1)(A) provides a plaintiff may move for judgment on the pleadings if the complaint states sufficient facts to constitute a cause of action and the answer does not state facts sufficient to constitute a defense to the complaint. The grounds for the motion shall appear on the face of the pleading or from any matter of which the Court can take judicial notice. CCP § 438(d).

The Complaint filed July 30, 2025 was drafted using Judicial Council form PLD-C-001 and contains two breach of contract causes of action. In the First Cause of Action, Plaintiffs alleges that the parties entered into a written contract on September 6, 2015 and that Defendant breached the contract on October 6, 2024 by failing to remit any further payment on the account, that Plaintiff has performed all obligations to Defendant, and that Plaintiff has suffered damages in the amount of \$13,067.34. The Second Cause of Action alleges a breach of contract based on an implied in fact contract with the same basic allegations, however, instead of a written contract, Plaintiff alleges that Plaintiff issued Defendant a credit card that Defendant accepted and used, and that in exchange for the use of the card, Defendant agreed to pay principal and interest. Plaintiff attached the Consumer Credit Card Agreement and Disclosure Statement Visa as Exhibit A to the Complaint. In the Answer, Defendant checked Item 3.a. indicating that Defendant admits that all of the statements in the Complaint are true except facts listed. Defendant listed no facts. Under the prayer, Defendant wrote, “I do not deny that I owe Wells Fargo money. I simply would like some sort of settlement and re-pay program that would allow me to pay off the debt over time.”

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance, (3) the defendant’s breach, and (4) the resulting damage to the plaintiff.” *Richman v. Hartley* (2014) 224 Cal. App. 4th 1182, 1186. Plaintiff has alleged all the necessary elements for each cause of action and Defendant has admitted the allegations are true.

The motion is **GRANTED**. Judgment is in favor of the Plaintiff in the amount of \$13,067.34. A proposed order and proposed judgment were lodged with the Court and will be modified to reflect the Court’s final ruling. The Court notes that the proposed Judgment includes costs. A Memorandum of Costs has not been filed. Therefore costs will not be included in the judgment.

WHITE VS. PERRIN CONSTRUCTION, INC., ET AL.
CASE NUMBER: 25CV-0208754

Tentative Ruling on Motions to Compel Further Responses to Discovery: Plaintiff James White filed two motions compelling further responses to Plaintiff’s Form Interrogatories, Set One, No. 4.1 and Plaintiff’s Request for Production, Set One, No. 5. Defendant Perrin Construction, Inc. opposed both motions. As a preliminary matter, the Court finds that the motions were timely filed.

Meet and Confer. A party seeking further responses to discovery must meet and confer in an attempt to resolve the issue prior to filing the motion. The Court finds that Plaintiff complied with the meet and confer requirement.

Merits. Form Interrogatory No. 4.1 seeks information regarding any insurance policies in effect at the time of the incident where the defendant was or might be insured in any manner for claims that arose from the incident. No. 4.1 is based on CCP § 2017.210.

A party may obtain discovery of the existence and contents of any agreement under which any insurance carrier may be liable to satisfy in whole or in part a judgment that may be entered in the action or to indemnify or reimburse for payments made to satisfy the judgment. This discovery